



Bureau of Experts at the Council of Ministers
Official Translation Department

Civil Aviation Law

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Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa

Civil Aviation Law

Chapter 1: General Provisions

Section 1: Definitions

Article 1: Definition of terms

In this Law, the following terms shall have the meanings assigned thereto, unless the context requires otherwise:

1. **Law:** Civil Aviation Law.
2. **Regulations:** Implementing Regulations of this Law.
3. **Kingdom:** Kingdom of Saudi Arabia.
4. **Registration Country:** Country where the aircraft is registered.
5. **Territory:** Land and territorial waters under the sovereignty of the Kingdom, and the airspace thereover.
6. **Minister:** The competent minister or his deputy in charge of civil aviation affairs.
7. **Civil Aviation Authority:** The authority with the official power to oversee civil aviation affairs.
8. **Authority:** General Authority of Civil Aviation; which is the authority with the official power to oversee civil aviation affairs in the Kingdom.
9. **Board of Directors:** Board of Directors of the General Authority of Civil Aviation.
10. **Chairman of the Board:** Chairman of the Board of Directors of the General Authority of Civil Aviation.
11. **International treaties:** International treaties and agreements to which the Kingdom is party, and amendments thereto.
12. **Chicago Convention:** The Convention on International Civil Aviation, signed in Chicago on December 7, 1944 and amendments thereto as ratified by royal decrees.
13. **Aircraft:** Any machine that can derive support in the atmosphere from the reactions of the air, other than the reactions of the air against the earth's surface.
14. **Operator:** Any natural or corporate person operating, for his benefit, one or more aircraft and controlling the flight crew thereof.
15. **State aircraft:** Aircraft owned by the Kingdom and designated for serving non-commercial public interest purposes, such as military, customs, and medical evacuation aircraft.
16. **Aerial works:** All air operations other than passenger or cargo carriage; such as firefighting, agricultural purposes, aerial photography and advertising.
17. **Air traffic:** Traffic of all aircraft flying or operating within the aerodrome's maneuvering zone.
18. **Aerodrome:** A specific area of land or water; including any buildings, installations, and equipment designated, wholly or partly, for the arrival, movement, or departure of aircraft.



19. **International aerodrome:** An aerodrome designated by the Kingdom within its territory for the entry and exit of international air traffic; where procedures pertaining to customs, immigration, health and quarantine, including animal and plant quarantine, and other similar procedures are implemented.
20. **Aerodrome maneuvering zone:** The part of an aerodrome used for take-off, landing, and other movements associated with aircraft take-off and landing, excluding aircraft parking area.
21. **Aerodrome operator:** Any natural or corporate person operating an aerodrome or part thereof.
22. **Pilot-in-Command:** The pilot in charge of the operation and safety of an aircraft during flight time.
23. **Flight crew member:** A member of the aircraft crew holding a valid permit and assigned fundamental duties to operate an aircraft during flight time.
24. **Cabin crew member:** A person assigned certain duties by the operator to perform on board an aircraft during flight time.
25. **Flight time:** The total time from the moment an aircraft first moves under its own power for the purpose of taking off until the moment it comes to a stop at the end of the flight.
26. **Prohibited area:** An area within the territory specified by the Authority where flying is prohibited.
27. **Restricted area:** An area within the territory specified by the Authority where flying is subject to certain restrictions.
28. **Dangerous area:** An area within the territory specified by the Authority where activities dangerous to aviation may exist at specified times.
29. **Regulated airline:** An airline open to the public and operating according to an announced schedule or regularly and frequently in a noticeable series of scheduled flights.
30. **International airline:** Any airline crossing the airspace of more than one country.
31. **Domestic airline:** Any airline operating completely within the territory of a given country.
32. **Air carrier:** A natural or corporate person offering or operating airlines for passenger, mail, and cargo carriage, or any of them.
33. **National registration:** Registration of aircraft in the Saudi National Aircraft Register which is prepared and overseen by the Authority.
34. **Register:** The Saudi National Aircraft Register prepared by the Authority to register national civil aircraft.
35. **International registration:** Registration of aircraft with an organization of international legal personality.
36. **Common mark:** A mark assigned by the International Civil Aviation Organization to the common mark registering authority for the international registration of aircraft of a foreign or joint airline agency.
37. **Common mark registering authority:** The authority maintaining the non-national register or part thereof, in which aircraft of an international or joint airline agency are registered.



38. **Aircraft accident:** Any occurrence associated with the operation of an aircraft occurring between the time any person boards said aircraft with the intention of flying and the time all such persons have disembarked, and resulting in any of the following:
- a) Serious injury to, or death of, a person due to being on board an aircraft, coming in direct contact therewith or any part thereof, or being exposed to jet blast.
 - b) Serious damage to an aircraft.
 - c) Loss of or inability to access an aircraft.
- Injuries due to natural causes, self-inflicted injuries, injuries caused by others, or injuries to stowaways, shall be excluded.
39. **Aircraft incident:** Any occurrence that is not included in the definition of an aircraft accident, and is associated with the operation of an aircraft and affects, or has the potential of affecting, safe operation thereof.
40. **Aviation accident:** Any situation or condition that could lead to an aircraft accident or incident.
41. **Aeronautical obstacles:** Either artificial obstacles such as tall buildings, towers, high wires, and the like; or natural obstacles such as mountains, tall trees, and the like.
42. **Saudi Aeronautical Information Publication (AIP):** A publication issued by the Authority, containing key principles provided for in laws, regulations, and instructions as well as the necessary rules that must be observed to ensure and facilitate safety, regularity, and speed of air traffic in the Kingdom's territory controlled by the Authority.
43. **Certificate of airworthiness:** A document issued by the Authority to the registration country certifying airworthiness of an aircraft for a set period of time, provided that the operator adheres to the conditions provided for therein.
44. **Authorization:** Permission for an aircraft to cross the airspace of the Kingdom or land in one of its aerodromes for commercial, diplomatic, or similar purposes, in the form of an authorization of scheduled flights, or a temporary authorization of unscheduled ones.
45. **Licensing:** An approval issued by the Authority to a natural or corporate person for engaging in a certain activity that falls within the powers of the Authority.
46. **Permit:** A certificate or license granted or validated by the Authority for persons working in the civil aviation sector such as aircraft crew, maintenance crew, air-traffic controllers, and others whose work requires holding certificates or licenses of internationally set levels.
47. **Government orders:** Instructions issued by the Civil Aviation Authority to working airline companies with respect to engaging in activities within the state's territory.

Terms mentioned in international treaties that are not provided for in this Article shall retain the meanings assigned to them in said treaties.

Section 2: The Kingdom's Sovereignty and Powers

Article 2: The Kingdom's powers

The Kingdom has complete and absolute sovereignty over the airspace within its territory.

Article 3: Scope of application

The provisions of this Law shall apply to the following:

1. Civil aviation activities and operations within the territory of the Kingdom.
2. Civil aerodromes and air carriage facilities, and ensuring aviation safety and security within the territory of the Kingdom.
3. Civil aircraft registered in the Kingdom.
4. State aircraft other than military ones.
5. Any aircraft registered in a foreign country and operated or maintained by a Saudi national by virtue of a lease, exchange, or any similar agreement, if an agreement between the Kingdom and the aircraft registration country so states.

Article 4: Implementing international treaties and agreements

Provisions of, and annexes to, the Chicago Convention and all other international treaties on civil aviation to which the Kingdom is party shall be deemed supplements to this Law.

Article 5: Powers of the Authority

The Authority shall be solely in charge of all civil aviation affairs in the Kingdom, including undertaking all wired and wireless communication services related to aviation safety and air traffic regularity.

Article 6: Inspection of and preventing aircraft from flying and seizing the documents thereof

Without prejudice to the provisions of other laws and international treaties, the Authority shall have the right to inspect aircraft, prevent them from flying, or seize any relevant documents for the purpose of overseeing the implementation of this Law. Rules for inspecting aircraft, preventing them from flying, and seizing documents shall be specified in the Regulations.

Article 7: Customs, security, health and agricultural quarantine, and other authorities

Officials of customs, security, immigration, health and agricultural quarantine, and any other competent authority shall have the right to inspect aircraft or any person or cargo on board thereof, as per the powers provided for in laws and rules in force in the Kingdom. Such inspection shall be conducted in the presence of a representative of the Authority in accordance with relevant laws and regulations.



Article 8: Observing the requirements of entering, exiting, and residing in the Kingdom

Passengers, crew members, and cargo dispatchers, when entering, residing in, or exiting the Kingdom, must comply with the laws, regulations, and information on residency, passports, customs, and health and agricultural quarantine.

Section 3: General Provisions on Aviation

Article 9: Aviation licenses and permits

The Authority may issue aircraft licenses and permits, without which, no aircraft may operate in the territory of the Kingdom. Licenses and permits shall be deemed personal property and may not be assigned to others. Conditions for issuing licenses and permits shall be specified in the Regulations.

Article 10: Aircraft requirements

1. Aircraft operating within the territory of the Kingdom shall meet the following requirements:
 - a) To be registered in the relevant country or under international or joint registration rules.
 - b) To have a valid airworthiness certificate issued or validated by the registration country or the common mark registering authority, provided that said certificate meets the requirements stipulated in international treaties.
 - c) To visibly display nationality and registration markings pursuant to the rules established by the Civil Aviation Authority.
 - d) To be fitted with set devices and equipment.
 - e) Flight crew members shall hold valid permits issued or validated by the civil aviation authority of the registration country or the common mark registering authority, and they shall be of the same number and quality as determined in the airworthiness certificate.
 - f) To maintain valid insurance for aircraft crew, passengers, cargo, luggage on board and for those belonging to others on the ground, and to cover damages resulting from flight risks affecting users thereof. Said insurance may, if necessary, be substituted by a cash deposit bank guarantee, or public authority guarantee pursuant to the conditions stipulated in the Regulations.
2. The Authority may exempt aircraft used for purposes of technical tests, teaching, or training, from one or more of the requirements set forth in paragraph (1) of this Article excluding the requirement set forth in paragraph (1/f) herein.

Article 11: Use of wireless devices on board aircraft

No aircraft operating in the territory of the Kingdom may be fitted with wireless devices without the approval of the competent authorities in the registration country or the common mark registering authority. Said devices may only be used for air navigation purposes with the knowledge of the flight crew pursuant to conditions specified in the Regulations.



Article 12: Dangerous goods

Subject to applicable international laws on the carriage of dangerous goods, no dangerous goods may be carried on board aircraft unless permitted by the Authority and in accordance with the procedures specified in the Regulations.

Article 13: Aerial photography and survey devices

No aircraft fitted with aerial photography and survey devices may be flown in the territory of the Kingdom, nor may such devices be used therein, unless authorized by the Authority and in accordance with the conditions stipulated therefor.

Article 14: Interfering with the work of the flight crew and tampering with the aircraft

Unauthorized persons shall be prohibited from interfering with, or obstructing the work of any flight crew member during flight time. It shall be prohibited for anyone to tamper with any part of the aircraft or equipment thereof, or commit any act that would jeopardize the safety of the aircraft, flight crew, or passengers.

Chapter 2: Air Carriage Regulation

Section 1: Air Carriage Policies and their Implementation

Article 15: Establishing air carriage policies

The Board of Directors shall establish the general air carriage policies in the Kingdom, and the Chairman or his designee, shall, in this respect, represent the Kingdom in its relations with other countries and international and regional organizations.

Article 16: Powers of the Authority

The Authority shall undertake regulation, control, development, and promotion of the air carriage sector, as well as the implementation of the general policies for air carriage in the Kingdom, and the Authority may to this end assume the following powers:

1. Negotiating with foreign countries for the conclusion and amendment of bilateral and collective agreements on regular and irregular air carriage, and submitting what is agreed upon to complete regulatory procedures.
2. Studying international agreements and treaties on civil aviation and air carriage, and amendments thereto, and submitting recommendations on whether to enter into said agreements or treaties.
3. Joining international organizations concerned with civil aviation and air carriage, attending their meetings and conferences, overseeing their work, and implementing their decisions and recommendations, upon approval thereof in accordance with applicable procedures.
4. Approving commercial agreements and arrangements concluded between national and foreign air carriage establishments and companies in accordance with relevant laws and instructions.
5. Determining which services and infrastructure can be privatized or opened for private sector participation and approving the same by the competent authority.
6. Issuing the necessary operation licenses and permits for national and foreign air carriage establishments and companies to operate regular airlines or irregular flights thereof, and monitoring the implementation of relevant provisions.
7. Issuing the necessary licenses for establishing and operating air freight and ground service companies and agencies for aircraft in the Kingdom, monitoring the implementation of relevant provisions, and imposing relevant legally established penalties, upon the approval thereof by the competent authority.
8. Issuing necessary permits for foreign airline establishments and companies to establish offices therefor or delegate their businesses to national air carriage or air freight companies and establishments on the basis of reciprocity. Requirements for issuing such permits shall be specified in the Regulations.
9. Amending, suspending, revoking, or terminating any license or permit issued by the Authority, as specified in the Regulations.
10. Determining the fees for issuing the licenses, permits, certificates, and services provided by the Authority, and approving the fees for aerodrome and air navigation services provided by the private sector, in accordance with the Regulations.



11. Issuing national and foreign air carriage agencies the necessary permits to perform sales, air freight, or aircraft ground services in the Kingdom and establishing the necessary regulations.
12. Implementing the standardized facilitation and aeronautical safety rules and principles necessary for the facilitation and safety of airline operations, aircraft, and the movement of passengers, cargo, and mail from, within, and to the Kingdom's aerodromes; in accordance with the provisions of the Chicago Convention and annexes thereto and other agreements and treaties to which the Kingdom is party.
13. Implementing established international rules and principles on various areas of air carriage as provided for in the international treaties and resolutions issued by international civil aviation and air carriage conferences and organizations and which have been approved by the Kingdom.
14. Conducting the necessary economic and technical studies and research to develop air carriage in the Kingdom and the economies of airlines and air freight companies and agencies operating in the Kingdom.
15. Adopting air carriage tariffs and prices of group and tourist flight packages within, from, and to the Kingdom, and amendments thereto, and creating a mechanism to monitor the implementation thereof.
16. Overseeing checking, and inspecting the operations of national and foreign air carriage establishments and companies to ensure compliance with the conditions of the licenses and permits issued thereto for operating the regular airlines and irregular flights thereof and practicing air carriage rights granted thereto; and inflicting legal penalties, upon the approval of the competent authorities.
17. Issuing the government orders necessary to exercise the powers set forth in this Law.

Article 17: Inspection of the operations of companies and agencies

1. Authorized representatives of the Authority may enter offices and premises of national and foreign air carriage companies and establishments, as well as air freight and aircraft ground service companies and agencies to inspect them and monitor the implementation of the conditions of the licenses and permits issued thereto for the performance of the activities thereof.
2. Said representatives shall have the right to access any documents as may be deemed necessary to perform said inspection, and they may seize any documents found to be in violation of the provisions of this Law, licenses or permits issued to said companies or agencies, or the instructions issued by the Authority.

Article 18: Prohibition of internal air carriage

Subject to the provisions of the Foreign Investment Law, no foreign operator may carry passengers, cargo, or mail for a fee or consideration between two points within the territory of the Kingdom. Nonetheless, the Authority may authorize such carriage to cater for exceptional or special circumstances or to finish an incoming international flight.



Article 19: Prohibition of alcohol and narcotics

1. An owner or operator of an aircraft registered in the Kingdom shall be prohibited from offering or selling any alcoholic drinks, narcotics, or any substances prohibited in the Kingdom on board the aircraft.
2. Anyone entering the Kingdom shall be prohibited from possessing alcoholic drinks, narcotics, or any substances prohibited in the Kingdom. Aircraft operators and pilots must warn incoming passengers thereagainst.
3. Subject to laws and instructions in force in the Kingdom, aircraft shall be prohibited from carrying intoxicants, narcotics, or prohibited substances into the Kingdom.

Article 20: Exchange and granting of air carriage rights

No agreements may be concluded, nor may any arrangements be made or measures be taken with respect to exchange or granting of air carriage rights pertaining to the Kingdom with any foreign party; except through the Authority and after completing the relevant required legal procedures.

Article 21: Carrying air mail

1. Letters and parcels may be carried by aircraft from and to the Kingdom only pursuant to mail procedures established in the Kingdom and the provisions of international treaties on mail which have been approved by the Kingdom.
2. No letters or parcels may be carried by aircraft unless received pursuant to established mail procedures in the Kingdom.

Article 22: Aviation fees and charges

National and foreign air carriage and aviation companies and establishments must pay civil aviation fees and charges due on their operations and domestic and international flights as per rates set in the Civil Aviation Tariff Law and the Implementing Regulations thereof.

Article 23: Implementing government orders

Owners or operators of aircraft operating in the Kingdom, as well as all national and foreign air carriage and aviation companies and establishments and air freight and aircraft ground service companies and agencies, must implement all the instructions issued by the Authority.

Section 2: Licensing and Operating Aviation Companies

Article 24: Establishing and operating aviation companies or establishments

Without prejudice to the provisions of the Companies Law and other relevant laws, no national company or establishment may be established for engaging in commercial air carriage or air operations, whether in the Kingdom or abroad, without an air operator license and the approval of the Authority pursuant to the conditions stipulated in the Regulations.



Article 25: Approval required for operation

National air carriage companies and establishments may not operate any airline or any new model of aircraft without obtaining the approval of the Authority pursuant to the conditions stipulated in the Regulations.

Article 26: Establishment, alteration, and cancellation of airlines

Prior to establishing, altering, or cancelling airlines, or altering the number of flights operated from, to, or within the Kingdom, national and foreign air carriage companies and establishments must obtain the prior approval of the Authority.

Article 27: Agreements between aviation companies

1. Subject to the provisions of Article 20 of this Law, national air carriage companies and establishments may only conclude agreements or make arrangements with foreign air carriage companies and establishments for the operation of, or joint investment in any commercial air carriage operations in accordance with the rules and conditions stipulated in the Regulations. Said companies and establishments may not commence the implementation of such agreements or arrangements except after completion of necessary legal procedures.
2. The Authority may approve or refuse said agreements or arrangements within a period not exceeding 30 days as of the date of notification; provided that all refusals are reasoned and limited to cases which violate the rules of competition and safety and the Kingdom's general policies pursuant to principles stipulated in the Regulations.

Article 28: Licensing of offices, representation, and agencies

1. Foreign air carriage or airline companies or establishments may not establish offices or representations in the Kingdom without obtaining the necessary license from the Authority on the basis of reciprocity.
2. Foreign air carriage or aviation companies or establishments may only assign representations or agencies in the Kingdom to licensed Saudi companies or agencies subject to the approval of the Authority.

Article 29: Conducting aircraft ground services

Aircraft ground services may not be provided in civil aerodromes in the Kingdom without obtaining a license therefor from the Authority. Such licenses may only be issued to foreign air carriage companies and establishments on a reciprocal basis.

Article 30: Submitting data and information

National and foreign air carriage and aviation companies and establishments as well as air freight and aircraft ground service companies and agencies must submit all information, data, and statistics on airline operations, as well as economic and technical studies on said airlines, air carriage charges and other data and information required by the Authority.



Section 3: Air Carriage Facilitation

Article 31: Implementation of international treaties

The Authority and competent agencies, each as per their respective jurisdiction, shall implement the provisions on facilitation provided for in the Chicago Convention and amendments thereto as approved by the Kingdom; for the purpose of facilitating operations of air carriage and aviation companies and establishments, and the movement of aircraft, passengers, cargo, and mail from, to, and through the territory of the Kingdom.

Article 32: The national air carriage facilitation committee

1. A national committee for air carriage facilitation shall be established pursuant to a decision by the Minister. The Regulations shall determine its powers, membership, rules governing its meetings, and responsibilities in accordance with international provisions and rules on facilitation.
2. Pursuant to a decision by the Chairman of the Authority, a committee shall be formed in each international aerodrome in the Kingdom, and said committee shall be chaired by the respective aerodrome director. The Regulations shall determine the responsibilities and work procedures of said committee in coordination with the Committee referred to in paragraph (1) of this Article, as well as the rules governing its meetings.

Chapter 3: Aerodromes and Navigational Services Facilities

Section 1: Establishment, Management, and Use of Aerodromes

Article 33: Establishment and operation of aerodromes

No civil aerodromes or airfields may be constructed, prepared, used, or invested in, in the Kingdom without obtaining the Authority's approval.

Article 34: Aerodromes and aviation facilities as public facilities

Aerodromes, facilities, buildings, tools, equipment, and wired and wireless communication stations and beacons belonging to the Authority, shall be deemed public facilities.

Article 35: Aerodrome management and supervision

Subject to Article 16(5) of this Law, the Authority shall manage, supervise operation and maintenance, and set up work rules for aerodromes affiliated therewith; and it may license other parties to undertake all, or part of, said duties subject to relevant laws and instructions without adversely affecting civil aviation safety and security.

Article 36: Types and categories of aerodromes

The Authority shall determine the types and categories of aerodromes in coordination with competent authorities.



Article 37: Use of aerodromes

Aircraft shall use declared civil aerodromes, subject to relevant regulations and rules, and they may not land in aerodromes other than those declared except in emergencies, and in accordance with the Regulations.

Article 38: Determining noise levels

The Authority shall determine the permissible noise level for aircraft using aerodromes in the Kingdom; as well as the altitudes, speeds, and engine power of aircraft, and other conditions and specifications that would ensure said noise levels are not exceeded.

Article 39: Supervising aerodrome staff

Without prejudice to the powers of other government authorities operating in aerodromes, the Authority shall, in coordination with relevant parties, supervise the staff of aerodromes affiliated therewith in matters that would ensure compliance with the laws and instructions pertaining to said aerodromes and the progress of work therein.

Section 2: Aerial Easement

Article 40: Establishment of aerial easement

Special easement known as aerial easement shall be established to ensure the safety of air navigation and sound performance of relevant equipment. Such easement shall provide for the following:

1. Removing or preventing any buildings, constructions or installations, installing, laying, or fixing overhead cables or any other obstacles or limiting the heights thereof in areas adjacent to aerodromes and navigation equipment facilities.
2. Installing guiding signs for obstacles threatening the safety of air navigation.

Article 41: Limits of easement

The Authority shall determine the scope of aerial easement and the areas where said easement is applicable in accordance with Annex 14 of the Chicago Convention on aerodromes.

Article 42: Installations and equipment affecting the safety of air navigation

Anyone using or owning electrical or electronic communication or other equipment or fixed or movable civil installations that could interfere with air navigation wireless or supporting equipment shall comply with the measures set by the competent authority, in accordance with the Regulations.

Article 43: Acquisition of necessary lands and real estate

The Authority shall be entitled to acquire lands and real estate needed to establish or expand aerodromes affiliated therewith or connect them to roads, as well as lands needed for air navigation equipment stations in accordance with laws and instructions.

Section 3: Protection of Aerodromes, Aircraft, and Navigation Equipment

Article 44: Implementing laws and instructions on aerodrome and aircraft security

Subject to relevant laws, the Authority, in cooperation with other competent authorities, shall implement laws and instructions and necessary measures to maintain security in the Kingdom's aerodromes and ensure the safety of aircraft and navigational support. To this end, the Authority may carry out the following:

1. Restricting or prohibiting the access of individuals to certain areas of aerodromes.
2. Verifying the identities of individuals and vehicles entering aerodromes, monitoring them, and questioning any suspicious person, if necessary.
3. Searching any passenger suspected of carrying weapons, flammable substances, or any other materials that can be used in any act of sabotage, violence, or threat during flights.

Article 45: Inspection of mail and parcels

Subject to Articles 21 and 44 of this Law, air mail and parcels must be inspected if suspected to contain materials threatening the safety of aircraft during flights, or illegal or prohibited material under laws in force in the Kingdom.

Article 46: Supervisory Security Committee for Civil Aviation

1. A national committee for civil aviation security shall be set up and named the "Supervisory Security Committee", and it shall be responsible for devising, developing, and overseeing a national plan for protecting the security of civil aerodromes, aircraft, and navigational facilities within the territory of the Kingdom.
2. The Board of Directors shall issue a resolution to establish said Committee and determine the powers thereof. Said Committee shall be chaired by the Chairman of the Authority – or his designee – and its members shall be the representatives of relevant government bodies.

Article 47: Aerodrome Preparatory Security Committee

A security committee shall be created in every civil aerodrome within the territory of the Kingdom in accordance with relevant provisions of the Regulations.

Article 48: Aerodrome Security Manual

The Authority shall create an Aerodrome Security Manual that shall include the conditions and procedures that should be implemented to ensure civil aviation security in accordance with relevant international rules and laws.

Chapter 4: Aircraft

Section 1: Aircraft Registration

Article 49: Mandatory display of nationality and registration marks

No civil aircraft may fly within the territory of the Kingdom without displaying nationality and registration marks in accordance with the laws of the registration country or the common mark registering authority. Nonetheless, the Authority may, as it deems fit, authorize the flight or landing of unregistered aircraft within the territory of the Kingdom for technical testing or any other purposes.

Article 50: Determining nationality and registration marks

The Authority shall determine nationality and registration marks for national aircraft, as well as the manner of displaying said marks on aircraft in accordance with relevant international rules and laws.

Article 51: Saudi National Aircraft Register

1. The Authority shall establish a register for national civil aircraft named the "Saudi National Aircraft Register". The Regulations shall specify the data that shall be entered into said Register as well as necessary aircraft registration requirements.
2. The Authority may grant others access to data contained in said Register in accordance with the conditions set thereby.
3. Each aircraft registered in said Register shall enjoy the nationality of the Kingdom and it shall display nationality and registration marks in accordance with rules stipulated in the Regulations.

Article 52: Aircraft registration certificates

The Authority shall issue aircraft registration certificates upon completing necessary procedures, provided that each certificate contains the data specified in the Regulations.

Article 53: Striking aircraft off the Register

1. An aircraft shall be stricken off the Register in the following cases:
 - a) If the owner or lessee thereof loses the Saudi nationality.
 - b) If ownership thereof is transferred to a foreigner.
 - c) If the aircraft is lost or withdrawn from service.
 - d) If the owner or lessee thereof requests that said aircraft be stricken off the Register.
 - e) If any of the registration conditions ceases to exist.
2. The owner or lessee of an aircraft shall immediately notify the Authority of any change provided for in paragraphs (1/a, 1/b, and 1/c) of this Article and return the aircraft registration certificate to the Authority.

Section 2: Rights on Aircraft

Article 54: Scope of application

The provisions of this Section shall apply to all civil aircraft of any nationality while in the territory of the Kingdom as well as Saudi civil aircraft anywhere, excluding state aircraft.

Article 55: Definition of (aircraft)

Subject to Article 1(13) of this Law, the term (aircraft), for the purpose of implementing the provisions of this Section, shall indicate the airframe, engines, propellers, wireless devices, and all parts serving an aircraft, whether fitted on or temporarily separated from said aircraft.

Article 56: Determining rights on aircraft

1. The following rights may be established on civil aircraft:
 - a) Right of ownership of an aircraft.
 - b) Right of an aircraft acquirer to own said aircraft by means of purchase.
 - c) Right to use an aircraft pursuant to a lease contract.
 - d) Right to a registered lien and any similar right established by agreement on an aircraft to satisfy a debt.
2. Without prejudice to privileged debt provisions set forth in Article 61 of this Law, no other rights may be established on civil aircraft that supersede the rights provided for in paragraph (1) of this Article.
3. Judicial proceedings pertaining to rights on aircraft shall be subject to the law of the competent court.

Article 57: Entry of rights on aircraft

1. Rights on foreign aircraft shall be entered in accordance with laws applicable thereon as per their registration nationality.
2. The Authority must enter the rights on Saudi aircraft in the pages of the register designated for said aircraft if said rights are duly established in accordance with the provisions in force in the Kingdom.
3. The Authority may deem depositing a document establishing any right on an aircraft in the file of said aircraft kept by the Authority, as entry of said right in said register; in which case, said deposit shall have the same effect as that of entry in the register.

Article 58: Effects of entry of rights

1. Laws and regulations governing a foreign civil aircraft as per the nationality thereof shall determine the effects of entry of rights on said aircraft against third parties.
2. Rights upon Saudi civil aircraft against third parties shall only come into effect as of the date of entry in the Register or of depositing the document establishing said rights in the aircraft's file with the Authority.
3. Any stakeholder may request from the Authority to surrender correspondence, copies or reproductions certified as true copies, which shall be deemed evidence of what is stated in the Register or in said files in the absence of evidence to the contrary.



Article 59: Aircraft ownership

Aircraft shall be deemed movable property in terms of the applicability of laws and rules in force in the Kingdom. Ownership of national aircraft may not be transferred without an official deed which shall have no effect against third parties unless entered in the Register.

Article 60: Legal disposition of aircraft

Any legal disposition of national aircraft may be made to any person by means of sale, lease, pledge, or any other form of disposition based on Sharia or law. Said disposition shall come into effect only upon entry thereof in the Register.

Article 61: Privileged debts

1. Privileged debts shall have priority over all other rights or debts established on aircraft; which are as follows:
 - a) Remunerations for rescuing the aircraft.
 - b) Extraordinary expenditures needed to maintain the aircraft, provided that said privileged debts are subject to *droit de suite* in accordance with the laws of the country in which rescue or maintenance work is conducted.
 - c) Fees payable under laws and regulations.
2. Priority of said debts shall be inversely related to the chronological order of the incidents giving rise thereto.
3. At the request of the creditor, the Authority shall record said privileged debts against registered aircraft in the Register, provided that such request is submitted within three months following completion of work which gave rise thereto. If said three-month period elapses, the debts may not be approved unless the amount of debt is agreed upon or a lawsuit is filed therefor. Reasons for the interruption or suspension of said period shall be determined in accordance with the law of the court considering said dispute.
4. Priority granted to rights referred to in Article 56(1/d) of this Law shall extend to all secured amounts and charges due for no more than three years prior to commencement of enforcement procedures and throughout said procedures.

Article 62: Non-recognition of harmful disposition

In case of attachment or forced sale of an aircraft or claim of any other right thereon, establishment or transfer of the rights set forth in Article 56(1) of this Law may not be recognized if conducted by the debtor against whom sale or enforcement procedures are implemented, and with his knowledge, to the detriment of the attaching creditor, executing authority, or purchaser.



Article 63: Forced sale of aircraft

1. If an aircraft is subject to forced sale in the Kingdom in order to settle outstanding debts thereon, forced sale procedures shall be implemented in accordance with the procedures set by laws in force in the Kingdom and as provided for in the Regulations.
2. Without prejudice to laws in force in the Kingdom, violation of the provisions of paragraph (1) of this Article shall render said sale revocable upon a claim filed, within six months as of the date of said sale, by any person harmed by such violation.
3. No forced sale may be carried out on an aircraft unless rights of priority over rights of the attaching creditor, pursuant to the provisions of this Section, have been settled from sale price or pledged by the purchaser.
4. Amounts spent in the joint interest of creditors on enforcement procedures leading to sale and legally due, in accordance with laws in force in the Kingdom, shall be paid using the aircraft sale price prior to all other debts, including privileged debts pursuant to Article 61 of this Law.
5. Pursuant to the provisions of this Article, forced sale of an aircraft shall relieve ownership thereof of all rights, including those not considered by the purchaser.

Article 64: Extension of registered right to spare parts

1. If any of the rights set forth in Article 56 of this Law arises as security for a debt and is correctly registered on an aircraft, said right shall extend to spare parts stored in a specified place or places subject to the conditions provided for in the Regulations.
2. For the purposes of this Article, (spare parts) shall mean aircraft parts, engines, propellers, radio devices, tools and equipment, and parts thereof; and, in general, all other items of any nature kept for the purpose of replacing parts or instruments making up an aircraft.

Article 65: Forced sale of spare parts

1. Should an aircraft be subject to forced sale in accordance with Article 63 of this Law, said sale shall include attached spare parts; ownership of which shall be transferred to the new purchaser.
2. If the debt of the attaching creditor is not secured in kind, spare parts may be sold at an auction for two thirds of the value thereof pursuant to Article 63(3) of this Law as specified by experts appointed by the authority assigned to conduct said sale.
3. When distributing sale proceeds of spare parts, the authority assigned to conduct said sale for the benefit of the attaching creditor shall determine the amount disbursable to privileged creditors up to two thirds of the sale proceeds after the deduction of joint expenses referred to in Article 63(4) of this Law.



Article 66: Compensation for damage on the earth's surface

1. If forced sale is conducted in the Kingdom and damage occurs on the earth's surface within its territory by an aircraft on which any of the rights set forth in Article 56 is established as security for debt, the following shall be observed when attaching said aircraft or any other aircraft owned by the same owner with similar rights established thereon to the benefit of the same creditor:
 - a) The provisions of Article 63(3) of this Law shall not affect the person sustaining damage or harm, nor shall they affect his successors if said person is an attaching creditor.
 - b) Rights referred to in Article 54 of this Law, conferring a burdensome security on the attached aircraft may not be invoked against the parties sustaining damage or successors thereof, except within 80% of the sale proceeds.
2. Provisions of paragraph (1) of this Article may not be applied if the operator has properly and adequately insured against damage on the earth's surface, or if he holds insurance in his name in any country or with any insurance agency in any country.
3. In the absence of any other restriction by laws in force in the Kingdom where the attached aircraft is being sold, said damage shall be deemed insured against within the scope of this Article if the amount of insurance is commensurate with the value of the attached aircraft when new.

Article 67: Transfer of aircraft record or registration

Excluding cases of forced sale conducted in accordance with the provisions of Article 63 of this Law, an aircraft record or registration may not be transferred from the Register to another country's register, or vice versa, unless after settlement of the rights registered against said aircraft or after the approval of holders of such rights thereto.

Article 68: Lease of aircraft

An aircraft lease is a written contract under which the lessor is obligated to enable the lessee to use said lessor's aircraft, with or without the flight crew, for one or more flights, an air operation, or for a specified period in return for a charge. Said aircraft lease contract shall only come into force upon the approval of the Authority. Obligations of both the lessor and lessee shall be specified in the Regulations.

Article 69: Joint liability of the lessor and lessee

1. The owner of a leased aircraft shall remain jointly liable with the lessee for all the legal obligations of the investor with respect to the aircraft and flight crew thereof pursuant to the provisions of this Law if the lease term does not exceed 14 days.
2. If the lease term exceeds 14 days or in the case of sale-type-lease, the lessee operating the aircraft shall be solely liable for the obligations referred to in paragraph (1) of this Article, unless otherwise stated in the lease contract.

Article 70: Verifying the satisfaction of requirements when purchasing, leasing, or renting aircraft

Saudi operators must, prior to purchasing, leasing, or renting an aircraft verify that said aircraft meets the requirements and technical standards set by the Authority.

Section 3: Attachment of Aircraft

Article 71: Attachment

In this Section, attachment shall mean every action, under any name whatsoever, under which an aircraft is seized for private interest by the judiciary or the competent authorities to the benefit of the creditor, owner, or holder of any in-kind right to the aircraft. The Authority shall have the right to seize an aircraft in case of failure to pay due fees in the Kingdom.

Article 72: Scope of application of this Section

The provisions of this Section shall not apply to attachment measures related to bankruptcy proceedings, nor to attachment measures implemented upon violation of the provisions of this Law, customs laws, criminal laws, or security rules and laws in the Kingdom.

Article 73: Non-attachable aircraft

1. Attachment shall not be imposed on the following:
 - a) Aircraft designated for state service, excluding those designated for commercial service.
 - b) Aircraft used actually and absolutely in a regular airline and indispensable back-up aircraft.
 - c) Any other aircraft designed to carry passengers or assets for a fee when scheduled for flight therefor, except in the case of debt arising from, or through, said flight.
2. The provisions of this Article shall not apply to attachment imposed by the owner who has lost possession of an aircraft through any illegal act.

Article 74: Provision of guarantees

1. Where attachment of an aircraft is not prohibited nor inapplicable, and the operator has not pleaded invalidity of such attachment, provision of adequate guarantee shall prevent imposition of the attachment, or allow for its immediate lifting.
2. A guarantee shall be deemed adequate if it covers the amount of debt and relevant expenses and is totally allocated for settlement of outstanding debt, or if said guarantee covers the value of the aircraft if said value exceeds the amount of debt and relevant expenses.

Article 75: Appointment of a receiver

If an attachment is imposed on an aircraft, no receiver may be appointed therefor other than the owner or operator thereof, if either of them is the debtor, or representatives thereof. Attachment shall not prevent said receiver from operating said aircraft pursuant to the decision of the attaching authority.

Article 76: Recording attachment

The Authority shall record the attachment imposed on national civil aircraft in the Register at the request of the creditor upon verification of supporting documentation.



Article 77: Expeditious determination

Disputes pertaining to the attachment of aircraft and requests for lifting such attachments shall be expeditiously determined.

Article 78: Compensation for attachment

In accordance with rules and laws in force in the Kingdom, the receiver shall be liable for harm sustained by the owner or operator of an aircraft if attachment is imposed on said aircraft in cases other than those permitted under the provisions of this Section, if the adequate guarantee provided by the debtor to prevent or lift attachment of said aircraft is refused, or if the attachment is illegally imposed.

Article 79: Executive attachment

No executive attachment may be imposed on an aircraft to settle an outstanding debt unless all the procedures of executive attachment of the debtor's other assets in the Kingdom are completed and said assets prove insufficient to settle debts owed to said creditor or creditors.

Section 4: Airworthiness of Aircraft

Article 80: Observance of international laws and rules

Subject to the provisions of this Section, international laws and technical standards set forth in the Chicago Convention and annexes thereto as adopted by the Kingdom shall be implemented in order to achieve the highest degree of aircraft and air aviation safety in line with environment conservation considerations.

Article 81: Airworthiness

1. The Authority shall issue airworthiness certificates to aircraft registered in the Kingdom, and it may approve any airworthiness certificate issued by another country to an aircraft registered in the Kingdom in accordance with the conditions set forth in the Regulations.
2. No aircraft may fly in the territory of the Kingdom without a valid airworthiness certificate issued or validated by the competent registration authority. Moreover, conditions and restrictions set forth in said certificate and the aircraft's flight manual must be complied with.
3. The Authority may exempt aircraft flying in the Kingdom for technical tests or other purposes specified in the Regulations from said certificate subject to compliance with restrictions and conditions set by the Authority.



Article 82: Technical records, weight, and equipment of aircraft

1. Technical records must be kept for every aircraft registered in the Kingdom containing the data specified by the Authority.
2. The weight of every aircraft for which an airworthiness certificate is issued or validated by the Authority must be specified, and the relevant operator shall prepare the aircraft weight table as determined by the Authority and maintain and not dispose of said table without the permission of the Authority.
3. Every aircraft registered in the Kingdom must be fitted with the devices and equipment set forth in the annexes to the Chicago Convention, and the Regulations shall determine the requirements and conditions thereof.

Article 83: Inspection to verify airworthiness

The Authority may inspect aircraft in order to verify the airworthiness thereof, and it may, if necessary, suspend airworthiness certificates and issue the necessary instructions therefor in accordance with the conditions and procedures set forth in the Regulations.

Article 84: Manufacture and maintenance of aircraft in the Kingdom

Without prejudice to other laws:

1. No aircraft, or part thereof, may be manufactured in the Kingdom without obtaining a prior license from the Authority in accordance with applicable laws and rules. Relevant regulatory conditions shall be provided for in the Regulations.
2. Parties and persons involved in aircraft maintenance must obtain a prior license therefor, in accordance with applicable laws and rules. Relevant regulatory conditions shall be provided for in the Regulations.
3. Aircraft manufacture and maintenance companies and establishments shall bear the expenses required by the Authority to undertake necessary control and inspection operations.

Section 5: Operation Specifications

Article 85: Carrying documentation and records on aircraft

No aircraft may operate in the territory of the Kingdom during an international flight without carrying the required documentation and records pursuant to the provisions of the Chicago Convention and annexes thereto and any other documentation or records specified by the Authority.

Article 86: Approval of operation specifications

No operator may commence operation of their aircraft unless the Authority has approved the relevant operation specifications prepared by said operator. Said specifications shall be deemed part of the license granted to said operator and they shall be enforceable. Moreover, the competent authority may approve or amend said specifications in accordance with this Law and its Regulations.



Article 87: Air operations manual

The operator shall prepare an air operations manual for every aircraft operated thereby; including operation specifications, to be used and referred to by pilots and operations staff after its approval by the Authority in accordance with the Regulations.

Article 88: Preliminary flights

An operator may not operate any new airline or extend an existing one prior to conducting one or more preliminary flights; on which no passengers may be carried other than persons needed to operate the aircraft. The operator may carry mail and cargo on said flights. The Authority may exempt operators from conducting said flights if proven unnecessary.

Chapter 5: Airspace Rules

Article 89: Determining airspace rules

1. The Authority shall determine airspace rules and laws related to flying aircraft, air navigation, protection of people and property on the earth's surface, and use of airspace.
2. The Authority shall determine the airways and routes to be followed by aircraft within the territory of the Kingdom.
3. The Authority shall determine the responsibilities of the aircraft pilot with respect to airspace rules, air traffic in and around aerodromes, permissions and instructions of air control, and what said pilot must do prior to take-off for a given flight.
4. Rules determining airspace and aviation altitude shall be established in the Regulations.

Article 90: Prohibited areas

1. The Authority may prohibit or restrict flying over:
 - a) Certain areas within the territory of the Kingdom for security reasons or public interest requirements.
 - b) The whole territory of the Kingdom, or part thereof, in exceptional circumstances for reasons pertaining to public interest.
2. The Authority may specify and declare dangerous areas. Procedures for flying over dangerous areas shall be determined in the Regulations.
3. The Authority shall determine prohibited acts which must be observed by aircraft operators and pilots, in addition to their compliance with relevant instructions. The Authority shall also determine the measures that must be implemented in case of committing said acts in accordance with the Regulations.

Chapter 6: Flying Permits and Training

Article 91: Aircraft flight crew permits

A flight crew member of an aircraft operating within the territory of the Kingdom shall be required to hold a valid permit issued by the registration country and the common mark registering authority, in accordance with the standards set forth in international treaties.

Article 92: National aircraft flight crew permits

A flight crew member of an aircraft registered in the Kingdom shall be required to hold a valid permit for performing the duties thereof, issued or validated by the Authority.

Article 93: Exemption from the permit requirement

No person other than those holding the required permits may work as a pilot of an aircraft registered in the Kingdom except for training purposes or to complete a test required to obtain, validate, or renew flying permits; provided that the pilot-in-command holds the required permits and there are no passengers on board the aircraft other than the following:

1. A cabin crew member.
2. A supervisor, inspector, examiner, or any other person approved by the Authority.

The term (required permit) set forth in this Article shall mean the permit or qualification entitling the holder thereof to perform the duties assigned thereto on said aircraft during said flight.

Article 94: Issuance, validation, and renewal of permits

The Authority shall be in charge of the issuance, validation, and renewal of flying permits, as well as permits for air traffic controllers and maintenance and other technical permits related to all civil aviation service work. It shall have the right to introduce other permits in accordance with the conditions set by it, provided that such conditions are not, in any case, below internationally established standards. The Authority shall have the right to refuse to issue or renew permits; it shall also have the right to terminate or suspend permits, particularly in cases of the violation of permit conditions or laws and instructions, in accordance with the conditions and requirements set forth in the Regulations.

Article 95: Personal flying record

Flight crew members of aircraft registered in the Kingdom as well as any person flying for the purpose of qualification – whether for flight training, completion of tests, or obtaining or renewing a permit – shall maintain a personal flying record. Said record and the data recorded therein must be approved by the Authority, and it may not be disposed of without the Authority's permission.



Article 96: Flight training

1. No person may train another to fly in the Kingdom for the purpose of preparing or qualifying him to obtain a flying permit, unless the trainer holds a valid permit to fly the aircraft used for training, issued or validated by the Authority, stating eligibility of said person to provide such training as well as the training conditions.
2. Subject to the provisions of paragraph (1) of this Article and the provisions of Article 93 of this Law, persons not holding the required flying permits may not practice or train as pilots for aircraft within the territory of the Kingdom, unless supervised by an approved trainer and with no passengers on board the aircraft in question.
3. The conditions and requirements for applying this Article shall be set forth in the Regulations.

Article 97: Flight training institutes

No institute or any other party may engage in training on civil aviation or the techniques thereof, or any other aviation activity in the Kingdom without obtaining a prior license from the Authority. The Authority may suspend or revoke such license in case of the violation of conditions thereof or applicable laws and instructions. The conditions and requirements for applying this Article shall be set forth in the Regulations.

Chapter 7: Air Carriage and Aerial Work Operations

Section 1: Applicable Rules and Instructions

Article 98: Scope of application

Subject to the provisions of Article 3 of this Law, the provisions set forth in this Chapter shall apply to the following:

1. Air operations conducted by the operators of civil aircraft registered in the Kingdom; including the following:
 - a) Regular and irregular domestic and international commercial air carriage operations.
 - b) Domestic and international private air carriage operations.
 - c) Aerial works in and outside the Kingdom.
2. The air operations set forth in paragraph (1) of this Article that are carried out by a Saudi operator using an aircraft registered in a foreign country.
3. Commercial and private air carriage operations, or aerial works carried out by a foreign operator using an aircraft registered in a foreign country, within the territory of the Kingdom.
4. Any person employed by an operator carrying out any of the operations set forth in paragraphs (1 and 2) of this Article.
5. Any person on board an aircraft which is involved in any of the operations set forth in paragraphs (1 and 2) of this Article.



Article 99: Applicable rules

Subject to the provisions of Article 4 of this Law, operators of any civil aircraft registered in the Kingdom and involved in air carriage or aerial works must, in operation thereof and wherever it may be, observe the provisions of this Law, unless they conflict with the provisions of the laws of countries where they operate.

Article 100: Inspection of air operations

Approved representatives of the Authority shall have the power to access, at any time, any workplace affiliated with operators for the purpose of inspection and monitoring the implementation of operation specifications as well as laws and instructions in force in the Kingdom. The Authority shall have the right to suspend any flight or airline if the Authority decides that the operation level thereof violates said specifications or laws and instructions, in accordance with clear procedures specified in the Regulations.

Section 2: Air Operations

Article 101: Monitoring flight operations

The operator, or his representative, shall be responsible for monitoring the flight operations of his aircraft to ensure compliance with set safety levels and implementation of relevant laws and instructions.

Article 102: Appointment of the pilot-in-command, and duties of the crew during air operations

The operator may not operate any flight of his aircraft prior to the appointment of one of the pilots as the pilot-in-command and he shall be responsible for the safety of the aircraft and everyone on board. All persons on board must carry out all the commands or instructions given by the pilot-in-command to ensure the safety of the aircraft and its load. The Regulations shall specify the requirements that the cabin crew must adhere to during landing, take-off, and flight (air operations) to ensure the safety of the aircraft and its load.

Article 103: Entering the cockpit and using equipment thereof

Any person other than cabin crew members, inspectors or controllers appointed by the operator or the Authority to perform a specific duty during the flight, shall be prohibited from entering the aircraft cockpit. Moreover, any person, other than qualified pilots assigned by the operator, shall be prohibited from using the aircraft navigation equipment during flights, subject to the conditions and requirements set forth in the Regulations.

Article 104: Reporting flying hazards and instructions to passengers

If a pilot-in-command encounters, during flight, abnormal weather conditions or notices abnormal performance of the navigation aids in a way that may threaten the flight, said pilot-in-command must notify the relevant air traffic services unit thereof and of any other conditions that may threaten the safety of the flight. The operator must implement all measures necessary to instruct the passengers on safety requirements in accordance with the Regulations.



Article 105: Prohibition of carrying intoxicated or narcotized persons

A person showing signs of intoxication or drug use shall be prohibited from boarding an aircraft.

Article 106: Prohibition of work under the influence of intoxicants or narcotics

Any person under the influence of intoxicants, narcotics, or any medication undermining his ability to properly perform his duties shall be prohibited from flying an aircraft or working as a cabin crew member. Under any circumstances, using such substances by said person shall be prohibited while on duty.

Chapter 8: Aviation Accidents

Article 107: Bureau of Investigation (the Bureau) and powers thereof

1. An independent bureau shall be established under the supervision of the Board of Directors to investigate accidents and incidents involving civil aircraft within the territory of the Kingdom as well as Saudi aircraft or aircraft operated by Saudi nationals over high seas or territories not owned by any country, in accordance with the conditions and controls set forth in the investigation regulations. Said Bureau may, to this end, undertake the following:
 - a) Draft the investigation regulations and have them approved by the Board of Directors.
 - b) Form investigation committees and determine their powers, and set the rules to be observed in investigating such accidents and incidents.
 - c) Prepare a report on the conditions and circumstances relating to each investigated aviation accident, stating the causes and results thereof as well as any recommended measures or rules for the prevention of such accidents in the future.
 - d) Issue the instructions and rules to be observed to ensure aviation safety and prevent the occurrence of aviation accidents in the future.
 - e) Publish the results of aviation accident investigations upon their approval by the Board of Directors.
2. The Bureau in the Kingdom may - upon the request of the competent authorities of a foreign country in the territory of which a Saudi civil aircraft or an aircraft operated by a Saudi national is involved in an aviation accident – conduct or participate in the technical investigation of said accident.
3. The Bureau may investigate aviation accidents involving any civil aircraft within the territory of another country upon a request by the competent authorities in said country, provided that said country bears all necessary costs and expenses resulting from such investigation.



Article 108: Reporting aviation accidents

1. In case of an aviation accident within the territory of the Kingdom, the local authorities, upon knowledge of an accident within their jurisdiction, cabin crew members of the aircraft involved in said accident, if their condition so allows, and pilots-in-command, upon witnessing an accident in the air while flying, shall notify the Authority thereof.
2. In case of an aviation accident outside the territory of the Kingdom involving a Saudi civil aircraft or an aircraft operated by Saudi nationals, the owner or operator of said aircraft or the representative thereof shall notify the Authority in the Kingdom of said accident immediately upon knowledge thereof.
3. Aerodrome directors as well as aircraft owners, operators, and pilots-in-command shall notify the Authority of any aircraft incidents as shall be specified by a decision by the Bureau.
4. The Authority shall notify the Bureau of the accident, immediately upon its notification thereof.

Article 109: Reporting foreign aircraft accidents within the territory of the Kingdom

Subject to the provisions of Annex 13 to the Chicago Convention on aircraft accident investigations, the Bureau shall, upon knowledge of an aircraft accident involving a foreign aircraft within the territory of the Kingdom, report said accident, as soon as possible, to the following:

1. Aircraft registration country or common mark registering authority.
2. Operator's country, if other than the registration country.
3. Country of design.
4. Country of manufacture.
5. Country sustaining damage as a result of the accident.
6. International Civil Aviation Organization.

Article 110: Duties of local authorities

Local authorities shall, in case of an aviation accident within their jurisdiction, prevent the aircraft from flying; preserve said aircraft as well as the parts, contents, or wreckage thereof; refrain from moving said aircraft except for the purpose of saving lives, safeguarding valuables or mail, or firefighting, or if said aircraft or the wreckage thereof threatens air aviation or other means of transport, until the investigation committee arrives and issues its instructions in this respect. In all cases, it is preferable, if possible, to photograph said aircraft or the wreckage thereof before it is wholly or partly moved or adjusted.

Article 111: The authority to decide on conducting the investigation and the powers of its committees

The Board of Directors shall, in case of an aviation accident involving a Saudi aircraft or a foreign aircraft operated by a Saudi national within the territory of the Kingdom, or over high seas or lands not owned by any country, decide to conduct an investigation into the circumstances and causes of said accident in light of available initial information, and it may decide not to proceed with said investigation and settle for the information gathered so far. The powers of the investigation committees shall be set forth in the Regulations.



Article 112: Participation of representatives of other countries in the investigation

1. In case of an aircraft accident involving a Saudi aircraft or a foreign aircraft operated by a Saudi national, within the territory of the Kingdom, or over high seas or lands not owned by any country, the Bureau may request that the countries and parties specified in the Regulations appoint approved representatives thereof to participate, as observers, in the technical investigation of said accident.
2. In case of an aircraft accident involving a foreign aircraft operated by a foreign national within the territory of the Kingdom, each country or party specified in the Regulations may appoint an approved representative thereof to participate in the relevant investigation, and each representative may have one or more consultants.
3. Rights of the representatives of countries and parties participating in the investigation shall be set forth in the Regulations.

Article 113: Cooperation between local authorities and investigation committees

Security and administrative authorities shall, each within their powers, take all necessary measures to facilitate the work of investigation committees and shall, in particular, provide said committees with official documents on the accidents. They shall undertake rescue and aid operations, transport the injured, extinguish fires, and recover dead bodies, while preserving the scene of the accident, and following the instructions issued by the investigation committees to facilitate the work thereof.

Article 114: Investigation committee report

The investigation committee shall submit initial and final reports to the Bureau on the accident as well as its causes and circumstances. The Regulations shall specify relevant countries and parties to be notified of said reports upon the Board's approval and authorization of publication thereof, in accordance with the provisions of international treaties.

Article 115: Countries' comments on draft final report

The Bureau shall determine which parties may receive the draft report prepared by the investigation committee on an aviation accident involving a foreign aircraft within the territory of the Kingdom in accordance with the provisions of international treaties for their comments thereon, if any, prior to publication of the final report on said accident. The Regulations shall set forth the procedures which the investigation committee shall follow with respect to the draft report sent to relevant parties and the actions to be taken in case said accident is or is suspected to be caused by a criminal offence.

Article 116: Reinvestigating accidents

The Bureau may, pursuant to a reasoned decision, reinvestigate aviation accidents if new substantive data or evidence, which were not available to the investigation committee and which affect the outcome of the previous investigation, arise.

Article 117: Conclusiveness of the facts of the final report

Facts stated in the final report prepared by the investigation committee on an aircraft accident shall be deemed true until proven otherwise.



Article 118: Participating in investigation committees abroad

In case of an accident involving a Saudi civilian aircraft or a foreign aircraft operated by a person holding the Saudi nationality, or if Saudi nationals are injured as a result of a foreign aircraft accident within the territory of a foreign country, the Bureau must dispatch an approved representative of the Kingdom as well as necessary consultants to participate in the investigation conducted by the competent authority in said country and the same shall submit a report on such participation.

Article 119: Investigating civil and military aviation accidents

In case of an aviation accident involving a military and a civil aircraft within the territory of the Kingdom, the Board of Directors shall set up a joint investigation committee comprising the Bureau and the Royal Saudi Air Force and any other party, as the Board may deem appropriate, to investigate said accident and submit a detailed report on the accident and its causes to the Board for approval. The Board shall decide whether or not to publish said report.

Chapter 9: Search and Rescue

Article 120: Definition of search and rescue

Search and rescue shall mean every provision of assistance, even if by mere warning, to an aircraft which is, or is feared or suspected to be, in imminent danger or distress, including assistance provided to persons on board.

Article 121: Organizing search and rescue operations

The Authority shall be responsible for conducting search and rescue operations for aircraft accidents in different areas within the territory of the Kingdom, and all relevant authorities and parties shall coordinate therewith. Search and rescue rules shall be set forth in the Regulations.

Article 122: Obligation to provide search and rescue assistance

1. The owner, operator, or pilot-in-command of an aircraft shall conduct search and rescue operations required by the Authority whenever necessary, if the condition of the aircraft so allows.
2. No person or party may refuse to provide any rescue assistance, nor refuse to search if requested by the competent authorities or if the nature of their work enables them to provide such assistance.

Article 123: Granting access to prohibited areas

Competent authorities shall grant persons, machinery, and equipment, including search and rescue aircraft and vessels access to any prohibited area if the aircraft is in such area, or the accident took place therein, provided that said operations are supervised by the Authority.

Article 124: Temporary permission to enter into the Kingdom

Competent authorities shall immediately and temporarily permit persons, equipment, and aircraft, as the Authority may deem necessary for search and rescue operations, to enter the territory of the Kingdom to participate in said operations.



Article 125: Cooperation with other countries

The Authority may propose necessary arrangements for coordination and cooperation with other countries; particularly neighboring countries with respect to search and rescue operations. Agreed upon arrangements shall be submitted to the Board of Directors for approval.

Article 126: Preservation of the scene of the accident

No person may remove any part or piece of an aircraft involved in an accident, or tamper with the scene of the accident, unless such actions are necessary for rescue operations or approved by the Authority. Search, rescue, and guard units shall monitor the implementation of these provisions until all information required for the investigation is gathered.

Article 127: Compensation for search and rescue operations

1. Any search and rescue assistance provided by persons in accordance with the provisions of this Chapter shall entitle said persons to recover expenses arising from said assistance operations as well as compensation for damage sustained during said operations or directly resulting therefrom.
2. Subject to the principle of reciprocity, the provisions of paragraph (1) of this Article shall not apply to any assistance provided by the Kingdom's agencies or authorities.

Article 128: Maximum limit of expenses and compensations

Expenses and compensations referred to in Article 127 of this Law may not exceed the value of the relevant aircraft immediately prior to the accident.

Article 129: Operator's obligation to pay compensation

The operator of the aircraft receiving assistance shall be obligated to pay search and rescue expenses as well as the compensations and remunerations payable under this Law, even if the aircraft in question is the property of the party providing said assistance.

Article 130: Search and rescue remunerations

The Board of Directors shall set the rules regulating the payment of remunerations for search and rescue of persons, aircraft, and property.

Article 131: Search and rescue lawsuits

The Board of Grievances shall hear lawsuits arising from search and rescue operations pertaining to accidents taking place in the Kingdom, high seas, or any territory not under the sovereignty of any country in any of the following cases:

1. If the aircraft subject of the search or rescue is registered in the Kingdom.
2. If the claimant is a Saudi national.
3. If the aircraft subject of the search or rescue is within the territory of the Kingdom.

Article 132: Dismissal of lawsuits

Lawsuits arising from search and rescue operations shall not be heard after the lapse of two years from the date of the end of said operations.



Chapter 10: Aircraft Operation Liabilities and Guarantees

Section 1: Air Carrier's Liability

Article 133: Definitions

In this Section, the following terms shall have the meanings assigned thereto, unless the context requires otherwise:

Air Carrier: The contracting or actual carrier, as the case may be, under the Air Carriage Contract and the Guadalajara Convention of 1961.

Montreal Convention: The Convention for the Unification of Certain Rules Relating to International Carriage by Air, executed in Montreal on May 28, 1999.

Article 134: Air carrier's liability

The air carrier's liability in his relationship with passengers, consignees, and consigners shall be contractual in accordance with the air carriage contract concluded with any of them and it shall also be subject to the provisions of international treaties to which the Kingdom is party and the provisions of this and other laws as well as instructions in force.

Article 135: Application of international treaties

International treaties to which the Kingdom is party shall apply to international and domestic air carriage of passengers, luggage, and cargo.

Article 136: Liability for disposition of luggage and cargo

The air carrier shall be liable towards passengers, consignees, and consigners for luggage and cargo disposed of during flights, even if said disposition is necessary to save the aircraft or passengers.

Article 137: Liability for disembarkation of passengers

The carrier shall not be liable if the pilot-in-command has to disembark or surrender any passenger for disorderly behavior on board, threatening the safety of the aircraft or passengers, or in execution of instructions given by the competent authority.

Article 138: Ensuring possession of required documents

1. Every air carrier within the territory of the Kingdom shall ensure that passengers and cargo have the required documents to enter or exit the Kingdom to the destination aerodrome.
2. The provisions of paragraph (1) of this Article shall, when necessary, apply to domestic air carriage.
3. The air carrier shall be liable for failure to fully implement the provisions of paragraphs (1 and 2) of this Article.



Article 139: Approval of air carriage terms

Every national or foreign air carrier operating within the territory of the Kingdom shall submit a copy of the air carriage terms implemented by him in the territory of the Kingdom to the Authority for approval.

Section 2: Liability for Damage Inflicted by Aircraft to Third Parties on the Earth's Surface

Article 140: Definition of (aircraft in flight)

In implementing the provisions of this Section, an aircraft is deemed to be in flight from the moment power is applied for the purpose of actual take-off until the moment landing is completed. In case of an aircraft lighter than air, this condition begins from the moment said aircraft becomes detached from the earth's surface until it is re-fixed to the ground.

Article 141: Cases of compensation for damage

1. Any person sustaining damage on the earth's surface within the territory of the Kingdom shall be entitled to receiving compensation from the aircraft operator once it is established that such damage was directly caused by the aircraft in flight or by any person or object falling therefrom. The damage sustained by a vessel or an aircraft registered in the Kingdom while over high seas shall be deemed as if sustained within the territory of the Kingdom.
2. The following cases of damage, which are subject to other laws and rules in force, shall be excluded from the provisions of paragraph (1) of this Article:
 - a) Damage sustained by third parties on the earth's surface within the Kingdom if not caused directly by the aircraft accident, or if arising from the mere passage of the aircraft through the airspace in accordance with air traffic rules in force.
 - b) Damage sustained by an aircraft in flight, or persons or property on board thereof.
 - c) Damage sustained to the earth's surface, if liability for said damage is regulated by a contract between the aggrieved party and the operator or the person who is entitled to use the aircraft at the time of sustaining the damage; or regulated by labor legislations applicable to labor contracts concluded between said persons.
 - d) Damage resulting from aircraft used for warfare, customs, or police.
 - e) Nuclear damage.
3. Compensations set forth in paragraph (1) of this Article shall be rendered in the national currency of the Kingdom.



Article 142: Liability for damage

1. The aircraft operator shall be liable for the compensations referred to in Article 141 of this Law whether said operator uses the aircraft personally or through affiliates or agents thereof in the course of performing their duties, even if not falling within their powers. In case of the death of the investor, said liability shall apply to the successors thereof.
2. The owner or lessee under whose name the aircraft is registered shall be deemed the operator of said aircraft, and shall, in said capacity, be liable unless he establishes during the process of determining his liability that another is the operator; in which case he shall, to the extent permitted by litigation proceedings, promptly take all necessary measures to include the other person as a party to the lawsuit.
3. The provisions of this Section shall not affect the liable person's right of recourse.

Article 143: Joint liability

1. The person entitled to use an aircraft for a period less than 14 days shall be jointly liable with the person granting said right for compensation for damage giving rise to compensation as set forth in Article 141 of this Law.
2. If a person uses an aircraft without the consent of its operator, said operator – unless he establishes that all due care has been taken to prevent said use – shall, together with the person who has used the aircraft without his consent, be jointly liable for damage giving rise to compensation. Both persons shall be deemed jointly liable for said compensation in accordance with the conditions, and to the limits on liability, set forth in this Section.

Article 144: Exoneration from liability and reduction thereof

1. A person liable, in accordance with the provisions of this Section, shall be exonerated from liability for damages in the following cases:
 - a) If said damage is a direct result of armed conflict or civil disturbance.
 - b) If said person has been prevented from using the aircraft by order of public authorities.
 - c) If it is established that the damage is the result of error, negligence, or omission of the aggrieved person, his affiliates, or agents.
2. If the person liable establishes that the aggrieved person or any of his affiliates or agents have contributed to the damage, the compensation shall be reduced proportionately with their contribution to such damage.
3. There shall be no exoneration from, or reduction of, liability in case of the fault of the affiliates or agents of the aggrieved party, if said party establishes that they were acting outside the scope of their powers.

Article 145: Aircraft contribution to damage

If a third party sustains damage on the earth's surface giving rise to compensation due to collision of two or more aircraft in flight or due to one aircraft obstructing the course of another, or if two or more aircraft have jointly caused such damage, each aircraft shall be deemed to have caused said damage and the operators thereof shall be liable proportionately with his or his affiliates' mistake, in accordance with the provisions of this Section.



Article 146: Maximum liability

Maximum limits of compensation for damage caused by aircraft to third parties on the earth's surface within the territory of the Kingdom shall be applied in accordance with the provisions of international treaties and amendments thereto to which the Kingdom is party.

Article 147: Unlimited liability for damage

Subject to international treaties to which the Kingdom is party:

1. The operator's liability, in accordance with the provisions of this Section, shall be unlimited if the aggrieved party establishes that the damage was caused by a willful act or omission on behalf of the operator, or his affiliates or agents with the intention to inflict damage, or if said damage was the result of recklessness with the knowledge of the possible occurrence of such damage. The aggrieved party shall establish that said affiliates or agents have committed such an act or omission in the course of their duties and within their power.
2. If a person unlawfully seizes and uses an aircraft without the consent of the party entitled to use it, he shall incur unlimited liability.

Article 148: Limits of liability in case of several liable parties

1. Subject to the provisions of Article 147 of this Law, if several parties are liable for damage in accordance with the provisions of this Section, the aggrieved party shall not have the right to an aggregate compensation exceeding the maximum compensation a single liable party is sentenced to pay.
2. In implementing the provisions of Article 145 of this Law, the aggrieved party shall be entitled to compensation not exceeding the aggregate of maximum limits set for the aircraft contributing to the damage. Nevertheless, no operator shall be liable for any damages exceeding the maximum limit set for his aircraft, unless said operator's liability is unlimited pursuant to the provisions of Article 147 of this Law.

Article 149: Damages exceeding liability limits

If the aggregate of specified damages exceeds the maximum liability limit determined in accordance with the provisions of Article 146 of this Law, the following rules shall apply:

1. In case of liability for death or bodily injuries, damages may not exceed the limits set for each deceased or injured person.
2. If damages are allocated only to deaths or bodily injuries, or only for damage to property, they shall be reduced proportionately with the amounts allocated for each.
3. If damages are allocated to deaths or bodily injuries as well as damage to property, aggregate damages set for distribution shall be appropriated to cover deaths or bodily injuries compensation percentages, and the balance thereof, if any, shall be distributed according to property damage percentages.



Article 150: Compensation lawsuits

1. An aggrieved person shall file a compensation lawsuit against the liable aircraft operator or notify him thereof within six months from the date of the accident resulting in the damage; otherwise, his right to damages shall be limited to the remaining part of the damages for which the investor is liable after satisfying all claims filed during said period.
2. Compensation lawsuits shall not be heard after the lapse of two years from the date of the accident resulting in the damage.
3. The competent court in the Kingdom shall decide whether or not to hear a compensation lawsuit beyond the period set forth in paragraph (2) of this Article, based on reasons provided for in the lawsuit. In any case, no lawsuit shall be heard after the lapse of three years from the date of the accident resulting in the damage.

Article 151: The competent authority to hear compensation lawsuits

1. Compensation lawsuits for damage caused by aircraft to third parties on the earth's surface within the territory of the Kingdom, as well as damage to Saudi vessels and aircraft over high seas shall be heard by the Board of Grievances.
2. One or more claimants may agree with one or more defendants to file a lawsuit before the courts of any other country, or submit the dispute to an arbitration panel within the territory of the Kingdom or any other country.
3. If a compensation lawsuit is filed before the Board of Grievances, the Board shall ensure that the defendant and all other parties to the lawsuit are informed of each relevant proceeding and that they are given fair and adequate opportunities to defend their interests.

Article 152: Coverage for liability for damage

Subject to the provisions stipulated in this Chapter, any operator of an aircraft operating within the territory of the Kingdom must maintain insurance to cover liability for damage set forth in the Regulations.



Chapter 11: Crimes and Acts against the Safety and Security of Civil Aviation

Section 1: Definition of Crimes and Acts

Article 153: Application of international treaties

Crimes and acts against the safety and security of civil aviation and aircraft shall be subject to the provisions of relevant international treaties and agreements to which the Kingdom is party and the provisions of laws in force in the Kingdom.

Article 154: Definition of crimes

1. Any person who willfully and without lawful reason commits or attempts to commit or is an accomplice of another person who commits or attempts to commit any of the following acts shall be deemed an offender:
 - a) Committing any act of violence against a person on board an aircraft in flight, if such act is likely to endanger the safety of that aircraft.
 - b) Destroying an aircraft in service or causing damage to such an aircraft which renders it incapable of flight or which is likely to endanger its safety in flight.
 - c) Placing or causing to be placed on an aircraft in service, by any means whatsoever, a device or substance which is likely to destroy that aircraft, cause damage to it which renders it incapable of flight, or cause damage to it which is likely to endanger its safety in flight.
 - d) Destroying or damaging air navigation facilities or installations or interfering with their operation, if any such act is likely to endanger the safety of aircraft in flight.
 - e) Seizing air navigation facilities, equipment or any devices, machines, or cables which are necessary to ensure the safety of aircraft or related thereto.
 - f) Communicating information which he knows to be false, endangering thereby the safety of an aircraft.
2. Any person who willfully, and without lawful reason, commits or attempts to commit, or is an accomplice of another person who commits or attempts to commit any of the following acts using any tool, substance, or weapon shall be deemed an offender:
 - a) Committing an act of violence against a person in an aerodrome serving civil aviation, if such act causes or has the potential to cause serious injury or death.
 - b) Destroying or seriously damaging the equipment and facilities of an aerodrome serving civil aviation or out-of-service aircraft therein, or interfering with aerodrome services if such an act endangers or has the potential to endanger the safety of the aerodrome.
3. Any person who, on board an aircraft in flight, unlawfully and by force or threat thereof or by any form of intimidation, seizes or attempts to seize said aircraft or exercises control thereof, or is an accomplice of a person who commits or attempts to commit such acts, shall be deemed an offender.



4. Any person who, on board a civil aircraft, commits any of the following acts shall be deemed an offender:
 - a) Assault, intimidation, or threat, whether physical or verbal, against a cabin crew member, if such an act interferes with the performance of the duties of the cabin crew member or lessens his ability to perform those duties.
 - b) Refusal to follow lawful instructions issued by the aircraft pilot-in-command, or by a cabin crew member on his behalf, for the purpose of ensuring the safety of the aircraft or of any person or property on board, or for the purpose of maintaining law and order on board.
5. Any person who, on board a civil aircraft, commits an act of physical violence against a person, or an act of assault, intimidation, or sexual harassment against cabin crew members or passengers, shall be deemed an offender.
6. Any person who, on board a civil aircraft, commits any of the following acts shall be deemed an offender if such an act is likely to endanger the safety of the aircraft or of any person on board, or if it disturbs law and order on board the aircraft:
 - a) Assault, intimidation, or threat, whether physical or verbal, against another person.
 - b) Intentionally causing damage to, or destruction of, property.
 - c) Consuming alcoholic beverages or drugs resulting in intoxication.
7. Any person who steals any property of an aircraft or passengers on board thereof shall be deemed an offender.

Article 155: Violations committed on board civil aircraft

Anyone who commits, on board a civil aircraft, any of the following acts shall be deemed a violator:

- a) Failure to refrain from smoking, or smoking in the lavatory or elsewhere.
- b) Tampering with smoke detectors or other safety-related devices on board an aircraft.
- c) Operating any portable electronic devices when prohibited.
- d) Refusing to sit in the designated seat or to fasten the seat belt.

Article 156: Deeming aircraft in flight or in service

1. An aircraft shall be deemed in flight from the moment all its external doors are closed following embarkation until the moment any such doors are opened for disembarkation or, if the aircraft makes a forced landing, until the moment the competent authorities take over the responsibility for the aircraft and the persons and property on board.
2. An aircraft shall be deemed (in service) from the beginning of the preflight preparation of such aircraft by ground personnel or by the aircraft crew for a specific flight until 24 hours after the last landing of the aircraft. In any case, the service period shall extend to the whole period during which said aircraft is deemed in flight as specified in paragraph (1) of this Article.



Article 157: Powers of the pilot-in-command and cabin crew

1. The pilot-in-command may, if he has reasonable grounds to believe that a person on board the aircraft while in flight has committed or is attempting to commit any of the crimes provided for in this Chapter or any act which jeopardizes, or may jeopardize, the safety of the aircraft or of persons or property on board the aircraft, or disturbs law and order on board thereof, take any necessary preventive measures against said person, including restraint.
2. The pilot-in-command may order, or allow, the rest of the cabin crew to assist him in implementing the measures set forth in paragraph (1) of this Article, and he may request, or allow, such assistance from passengers but he may not compel passengers to do so.
3. The pilot-in-command may request from the competent authorities in the country in whose territory the aircraft lands to discharge the person referred to in paragraph (1) of this Article from said aircraft, upon providing grounds therefor.
4. If the pilot-in-command decides to surrender any person on board the aircraft due to the severity of the crime committed thereby, said pilot shall, as soon as possible, notify the authorities in the country in whose territory the aircraft lands, upon providing grounds therefor, and he shall, upon landing, submit all evidence and information in his possession.

Section 2: Jurisdiction and Duties of Authorities

Article 158: Control of aircraft and resumption of flight

If any of the crimes set forth in Article 154 of this Law, or any act which jeopardizes or may jeopardize the safety of an aircraft in flight or any person or property on board thereof, is committed, the competent authorities in the Kingdom must implement the following measures:

1. Restore control of the aircraft to its pilot-in-command or maintain such control.
2. Restore the aircraft which has landed in the Kingdom, and cargo on board thereof, to those entitled by law to possess it, and allow the passengers and cabin crew to resume their flight as soon as possible.

Article 159: Discharging or surrendering suspects

The competent authorities in the Kingdom shall allow the pilot-in-command to discharge or surrender any person in accordance with the provisions of Article 157 of this Law.



Article 160: Legal procedures

Upon surrendering any suspect in accordance with the provisions of Article 157 of this Law, or if the suspect is found within the territory of the Kingdom, the competent authorities in the Kingdom shall implement the following legal procedures, in accordance with laws and rules in force:

1. Detaining said person for the period necessary to complete judicial procedures or the procedures for surrender thereof to another country; and allowing said person to immediately contact the nearest representative of the country of which said person is a national.
2. Conducting an immediate investigation on the accident to ascertain that the suspect has committed a crime that falls within the judicial jurisdiction of the Kingdom's courts, and bringing the suspect to trial if such jurisdiction is established.
3. Deporting or surrendering the suspect to his country of citizenship, country of permanent residence, or the country from which he started his flight, if the crime is not within the judicial jurisdiction of the Kingdom.

Article 161: A person's non-admittance

Discharging or surrendering a person in accordance with Articles 157 and 159 of this Law, or detaining or prosecuting said person in accordance with Article 172 of this Law shall not be considered an acceptance of entry thereof to the territory of the Kingdom. The competent authorities may deport or return said person to his country of citizenship, country of permanent residence, or the country from which he started his flight.

Chapter 12: Penalties and Punishments

Article 162: Capacity to investigate

The Authority's representatives assigned by the Chairman thereof shall have the power to investigate violations of the provisions of this Law or its Regulations, or their implementing decisions, instructions, or rules.

Article 163: Penalties imposed by the Authority

Without prejudice to the penalties established in accordance with the provisions of this Law and other laws applicable in the Kingdom, the Authority may take any of the following measures in case of violating the provisions of this Law or its Regulations, or the decisions or instructions issued in relation thereto:

1. Suspending certificates, licenses, or permits issued by the Authority to operators or aircraft for a limited period, or revoking them.
2. Suspending the validity of the certificate of airworthiness issued or approved by the Authority for a limited period, or revoking it.
3. Suspending the validity of the aviation certificate or any other certificate issued or approved by the Authority for a limited period, or revoking it.
4. Prohibiting an aircraft from flying for a limited period or forcing it to land after warning.
5. Prohibiting, temporarily or permanently, the pilot-in-command of a foreign aircraft from flying in the territory of the Kingdom.
6. Suspending licenses, permits, or certificates issued by the Authority for a limited period, or revoking them.
7. Closing down the offices of airlines, air freight companies and agencies, or aircraft ground services which operate without a license or after the license thereof is expired, withdrawn, or revoked.

Article 164: Prevention, stopping, or removal of violations

Without prejudice to the imposition of prescribed penalties, the Authority shall take the necessary measures to prevent, stop, or remove violations of the provisions of Section Two of Chapter Three herein, and oblige the violator to pay all expenses incurred by the authorities to this effect.

Article 165: Penalties for operation without a license, permit, or certificate

Any person who operates any aircraft, company, agency, or any air operations subject to the provisions set forth in this Law without obtaining the necessary license, permit, or certificate from the Authority, or continues operation after suspension, withdrawal, or revocation of such license, permit, or certificate shall be subject to imprisonment for a period not exceeding one year and a fine not exceeding 100,000 riyals or to either penalty.



Article 166: Penalties for acts endangering flight safety

Any person who commits any of the following acts shall be subject to imprisonment for a period not exceeding three years and a fine not exceeding 300,000 riyals or to either penalty:

1. Operating or flying an aircraft without displaying nationality or registration marks, or displaying incorrect or unclear marks without a permit from the Authority, with the intention to conceal the identity of the aircraft.
2. Operating an aircraft prior to obtaining the necessary certificates for registration or airworthiness thereof without a license, permit, or certificate therefor from the Authority or after suspension, withdrawal, revocation, or expiration of any of such certificates.
3. Flying an aircraft without obtaining the required certificates or permits, or in cases other than those set forth in the provisions of this Law, without obtaining a special license from the Authority.
4. Flying an aircraft over a prohibited area, or flying over it unintentionally and disobeying the orders issued to him.
5. Disobeying orders to land directed while flying within the territory of the Kingdom.
6. Landing or taking off outside aerodromes or designated and declared places, or flying outside the specified areas and airways without special authorization, or in other than a case of force majeure.
7. Flying an aircraft within the territory of the Kingdom, without a permit, that carries on board:
 - a) Weapons and ammunition or any other articles, the transportation of which is prohibited by law.
 - b) Persons with the intention of smuggling or committing a felony, even if not committed.
8. Flying an aircraft while intoxicated or under the influence of narcotics, or a medication which undermines the ability to fly the aircraft.
9. Not recording the data required in the aircraft documentation or registers, altering the same in bad faith, or recording untrue data which endangers, or has the potential to endanger, the aircraft.
10. Refusing, without justification, to conduct search operations required by competent authorities, or to contribute by means in his possession to rescue an aircraft or a person whose life is threatened due to an aircraft accident.
11. Entering, without a permit, the prohibited area of aircraft traffic in aerodromes, or bringing or leaving animals or articles within said area which could cause damage to aviation safety.

Article 167: Penalties for acts of aggression against aviation facilities and aircraft

Subject to the provisions of other laws applicable in the Kingdom including harsher penalties, any person who commits an unlawful act provided for in Article 154 of this Law shall be subject to imprisonment for a period not exceeding five years and a fine not exceeding 500,000 riyals or to either penalty.



Article 168: Penalties for perpetrators of unlawful acts on board civil aircraft (disorderly passengers)

Any person who commits any of the violations provided for in Article 155 of this Law shall be subject to the following fines:

1. Failure to refrain from Smoking: 300 riyals.
2. Use of remote control electronic devices or other devices prohibited to be used on board aircraft: 500 riyals.
3. Refusal to sit in the designated seat or to fasten the seatbelt: 200 riyals.
4. Failure to follow internationally recognized aviation safety instructions and guidelines: 200 riyals.
5. Smoking in the lavatory: 500 riyals.
6. Tampering with the smoke detector or other safety-related devices on board: 1,000 riyals.
7. Causing breakdown or damage to aircraft contents or any of its devices: 1,500 riyals.

Article 169: Penalties for violations where no penalty is prescribed

A penalty of imprisonment for a period not exceeding six months and a fine not exceeding 50,000 riyals shall be imposed in the following cases:

1. Commission or omission of an act in violation of the provisions of this Law, or the rules, instructions, licenses, permits, or certificates issued in accordance therewith, if no specific penalty is prescribed for such commission or omission in this or any other law.
2. Violation of penalties imposed by the Authority in accordance with the provisions of Article 164 of this Law.
3. Violation of government orders issued by the Authority.

Article 170: Penalty for violating air carriage restrictions

Subject to the provisions of Article 165, carriers shall be compelled to pay compensation equivalent to double the normal air carriage fare for passengers or goods transported in violation of these restrictions.

Article 171: Suspension or withdrawal of permit in case of conviction of a criminal offence

The Authority may temporarily suspend or permanently withdraw an aviation permit or any other permit issued or approved thereby if the permit holder is convicted of a criminal offence or an offence impinging on honor.



Article 172: Judicial jurisdiction

1. The Board of Grievances shall have jurisdiction to decide all offences committed in violation of the provisions of this Law or its Regulations, or the decisions or instructions issued in relation thereto, if such offences are committed within the territory of the Kingdom, or on board aircraft registered in the Kingdom or operated by a Saudi national over high seas or areas not subject to the sovereignty of any country.
2. A criminal lawsuit shall, in all cases, be filed upon the request of the Authority.

Article 173: Aircraft confiscation

An aircraft may be confiscated pursuant to a judicial judgment in the following cases:

1. Displaying incorrect nationality or registration marks, or not displaying any such marks without approval.
2. If the aircraft owner or operator transports weapons, ammunition, or articles, the transportation of which is prohibited, with the intention of smuggling or committing an offence undermining the Kingdom's security.

Article 174: Committee formation

- A. Without prejudice to the provisions of Articles 131, 151, and 172 of this Law, a committee shall be formed, pursuant to a decision by the Board, of five members, one of whom at least shall have a degree in law to serve as chairman. Said committee shall have the power to decide all violations of the provisions of this Law and its Regulations. Its decisions shall be issued by majority vote and shall be approved by the Board's Chairman or his designee. Said decisions may be appealed before the Board of Grievances within 60 days from the date of notification of the parties concerned.
- B. If the committee provided for in paragraph (a) of this Article determines that the violation warrants the penalty of imprisonment, confiscation, or closing down the activity, it shall be initially referred to the Board of Grievances for decision.

Chapter 13: Military Aircraft

Article 175: Application of the Law

1. The provisions of Articles 37, 89, and 90 of this Law shall apply to all national and foreign military aircraft during flight in air ways or using civil aerodromes within the territory of the Kingdom.
2. Subject to the provisions of paragraph (1) of this Article, the provisions of Articles 6, 7, and 12 of this Law shall apply to foreign military aircraft during flying over the territory of the Kingdom and landing therein.

Article 176: Flying of foreign military aircraft

A foreign military aircraft may not fly or land within the territory of the Kingdom unless under an international agreement to which the Kingdom is party or a bilateral agreement concluded with the state to which the aircraft belongs. In all cases, a special authorization shall be obtained from the Authority after coordination with the competent authorities, provided that said aircraft clearly displays its distinctive marks.

Chapter 14: Concluding Provisions

Article 177: Other air vehicles

The provisions of this Law shall apply to all types of air vehicles other than aircraft currently in use, unless such provisions are impossible to apply due to the nature or technical structure of said vehicles. The Regulations shall specify the conditions and requirements for the application of this Article.

Article 178: Repeal of civil aviation laws

This Law shall, once it enters into force, repeal the Law of Landing and Passage of Foreign Military and Governmental Aircraft, and Diplomatic Aircraft within the Territory of the Kingdom of Saudi Arabia and Exemption From Duties issued by Royal Decree No. 7/7/15/2559 dated 1/4/1372H, the Law of Aerodromes Establishment Inside the Kingdom of Saudi Arabia issued by Royal Decree No. 7/7/1/3456 in Ramadan 1372H, and the Aviation Law issued by Royal Decree No. 17/2/22/3481 dated 24/9/1372H.

Article 179: Implementing regulations

The Board of Directors shall issue the Implementing Regulations and decisions necessary for the implementation of the provisions of this Law.

Article 180: Law publication and implementation

This Law shall be published in the Official Gazette and shall enter into force after 180 from its publication date; it shall repeal all provisions conflicting therewith.



Appendix

Amendments

January 9, 2012 (Safar 15, 1433H)

Council of Ministers Resolution No. 28 provides for the following:

- Replacing the definition "**Minister:** The competent minister or his deputy in charge of civil aviation affairs" mentioned in paragraph (6) of Article 1 with the definition "**President:** President of the General Authority of Civil Aviation".
- Replacing the word "Minister" mentioned in paragraph (1) of Article 32 with the word "President".

November 24, 2020 (Rabi II 9, 1442H)

Council of Ministers Resolution No. 228 provides for the following:

- Approving the replacement of the phrase "Supervisory Security Committee for Civil Aviation" mentioned in Article 46 with the phrase "National Committee for Civil Aviation Security".

November 29, 2022 (Jumada I 5, 1444H)

Council of Ministers Resolution No. 340 provides for the following:

- Amending paragraph (1) of Article 107 by replacing the phrase "the Board of Directors" with the phrase "the Board of Directors of the National Transport Safety Center".
- Amending Article 114 by replacing the phrase "the Board of Directors" with the phrase " the Board of Directors of the National Transport Safety Center".
- Amending Article 119 by replacing the phrase "the Board of Directors" with the phrase " the Board of Directors of the National Transport Safety Center".



September 5, 2023 (Safar 20, 1445H)

Council of Ministers Resolution No. 158 provides for the following:

- Amending Article 107 to read as follows:

"Article 107: The National Transport Safety Center (the Center) and its Powers"

1. The Center shall investigate accidents and incidents involving civil aircraft within the territory of the Kingdom as well as Saudi aircraft or aircraft operated by Saudi nationals over high seas or territories not owned by any country, in accordance with the conditions and controls set forth in the investigation regulations. The Center may, to this end, undertake the following:
 - a) Draft the investigation regulations and have them approved by the Board of Directors of the Center.
 - b) Form investigation committees, determine their powers, and set the rules to be observed in investigating such accidents and incidents.
 - c) Prepare a report on the conditions and circumstances relating to each investigated aviation accident, stating the causes and results thereof, as well as any recommended measures or rules for the prevention of such accidents in the future.
 - d) Issue the instructions and rules to be observed to ensure aviation safety and prevent the occurrence of aviation accidents in the future.
 - e) Publish the results of aviation accident investigations upon their approval by the Board of Directors of the Center.
 2. The Center in the Kingdom may - upon the request of the competent authorities of a foreign country in the territory of which a Saudi civil aircraft or an aircraft operated by a Saudi national is involved in an aviation accident – conduct or participate in the technical investigation of said accident.
 3. The Center may investigate aviation accidents involving any civil aircraft within the territory of another country upon a request by the competent authorities in said country, provided that said country bears all necessary costs and expenses resulting from such investigation".
- Amending paragraphs (3) and (4) of Article 108 and Articles 109, 114, 115, 118, and 119 by replacing the word "Bureau" with the word "Center".
 - Amending paragraph (1) of Article 112 and Article 116 by replacing the word "Bureau" with the word "Center".